

Tahir v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 22 February 2019 · WRIT - C No. 6371 of 2019 · **Writ disposed; Clause 6.5 representation to EE in one month; recovery stayed.**

HEADNOTE

On a challenge to a recovery citation said to rest on an inflated electricity bill, the Division Bench did not examine the bill. Accepting the department's statement that a representation lay before the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005, it disposed of the writ directing that any such representation be considered and decided in accordance with law within one month, and stayed coercive action on the citation for that period.

FACTUAL SUMMARY

The petitioner, Tahir, filed a writ petition in the Allahabad High Court challenging a recovery citation dated 25 January 2019 demanding Rs 1,54,712 plus other charges. He contended that the citation arose from an inflated electricity bill, which he disputed. Counsel for the electricity department submitted that the petitioner could make a representation before the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005. The Division Bench disposed of the petition on that representation route, with a limited stay of coercive recovery.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

inflated-bill-recovery-citation

HOLDING

Where a consumer challenges a recovery citation on the ground that it is founded on an inflated electricity bill, the High Court may dispose of the writ without examining the bill, directing that a representation before the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005, if made, be considered and decided in accordance with law within one month, and staying coercive recovery for that period. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy The Court treated a Clause 6.5 representation to the Executive Engineer as the statutory route for the inflated-bill recovery dispute and disposed of the writ on that footing without deciding the bill. ¶ 1

billing-objection-to-executive-engineer-under-6.5 On the department's statement that the consumer could represent before the Executive Engineer under Clause 6.5, the Court directed that such a representation, if made, be decided in accordance with law within one month. ¶ 1

billing-dispute-question-of-fact-executive-engineer-clause-6.5 The petitioner's dispute that the recovery citation flowed from an inflated bill was left to the Executive Engineer under Clause 6.5 rather than being tried on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION DEMANDING RS 1,54,712 PLUS OTHER CHARGES WAS FOUNDED ON AN INFLATED BILL

Writ disposed by relegating the consumer to Clause 6.5 without examining the bill or the citation on merits. ¶ 1